



DECISION

Complaint No. : POS/2723/2022/KC/F-19

Name and address of the complainant : Mr. Aijaz Ahmed Abbasi, House No. 11/15, 5-C, Nazimabad No. 5, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigating Officer : Syed Ali Mumtaz Zaidi, (PAS), Advisor-F

Vetted by : --

Subject : **ALLEGED ILLEGAL CONSTRUCTIONS OF PORTIONS/ FLATS / SHOPS ON PLOT NO. 5-C, 12/14, NAZIMABAD NO. 05, KARACHI.**

THE COMPLAINT:

Mr. Aijaz Ahmed Abbasi in his complaint dated 10.05.2022 stated that an illegal construction of portions/flats/commercial shops is being carried out on Plot No. 5-C, 12/14, Nazimabad No. 05, Karachi in a thickly populated area in violation of the regulations of the Sindh Building Control Authority (SBCA). He therefore, solicited intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) and the matter was taken up with the Director (Buildings), Sindh Building Control Authority, North Nazimabad Town, Karachi.

3. In response the Deputy Director, District Central, SBCA vide letter dated 03.08.2022 reported that the site has been inspected by the field staff which has reported that Ground + 1 floor structure has been built at site. He further reported that the premises was sealed on 28.07.2022 and as per record the owner already submitted an undertaking on 08.06.2022 that he has constructed a residential house for his personal living. He further reported vide letter dated 05.09.2022 that action has been taken on 01.09.2022 by demolishing 2nd floor slabs, beams and columns with the help of demolition squad and SBCA Police force.

4. The report was sent to the complainant for his rejoinder, who vide letter dated 26.09.2022 stated that the status of construction remained the same. He alleged that SBCA had only demolished the front portion of 2nd floor and that work was continuing inside the building.

5. Hearings were fixed by issuing notices to Complainant, Respondent Agency and the Intervenor.

6. On 03.10.2024 the Deputy Director, District Central, SBCA attended the hearing and submitted a report that the authority has granted approval of building plan for construction of Ground+1st floor residential house on Plot No.5-C, 12/14, Nazimabad No. 5, Karachi, measuring 275.00 sq. yds. in the name of Syed Khalid Zaki vide letter dated 26.04.2022. However, the site has been inspected and found that Ground+2 Floors have been constructed and occupied in multiple units. However, there are no shops and commercial activities found at the time of inspection. He further reported that a Civil Suit No. 13/2023 has also been filed by the owners namely Syed Khalid Zaki & others vs SBCA & others before the Hon'ble High Court of Sindh in respect of same property, which is still pending.

7. The Director District Central Karachi was directed to furnish copy of Suit No. 13/2023 so this Institution becomes aware of the nature of plaint sub-judice before the Court but he failed to comply despite repeated notices.

8. Therefore, summons were issued to procure the attendance of Director Central SBCA, who appeared in person before the Investigating Officer and undertook to visit the site and to take necessary action in the matter as per SBCA's laws/rules/regulations.

9. Subsequently on 19.12.2025 the Deputy Director, District Central, SBCA attended the hearing and submitted report dated 17.12.2025. The contents are repetition of his earlier afore-mentioned report. However, his report further states that a civil suit No.13 of 2023 has now been transferred from High Court to Senior Civil Judge X (Central) vide No.1640/2025 which is still pending. He informed that the Hon'ble High Court of Sindh had granted status-quo order in the same suit on 05.01.2023.

FINDINGS:

10. It is a settled legal proposition that a dispute / conflict / claim cannot proceed simultaneously in multiple forums. Currently, the issue of plot No. 5C, 12/14, Nazimabad No.05, Karachi is sub-judice before the Civil Court in terms of suit filed by the owner of plot Syed Khalid Zaki versus SBCA & others and order to maintain status-quo is also in field.

11. As per Section 9(a) of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) the jurisdiction of this Institution is barred in sub-judice matters.

DECISION:

12. In view of the above, the complaint is disposed of accordingly.

Given under my hand and seal of office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh
Karachi, dated 21st January, 2026